

1. The Motions to Compel are GRANTED.
2. **Defendant shall serve verified responses to the Discovery Requests within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Discovery Requests have been waived. See Code Civ. Proc. §§ 2030.290 and 2031.300.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Defendant shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$2,775** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.**

^[1] Defendant's motion concerning the third discovery request - requests for admission - is moot since the court has, in another motion in this matter scheduled for the same date, ruled that those matters will be deemed admitted.

11. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER
HEARING ON SUMMARY MOTION MO FOR JUDGMENT ON THE PLEADINGS
FILED BY: SECURITYPLUS FEDERAL CREDIT UNION
TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The Motion and Declaration were timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits salient facts and fails to offer any valid defense.

The Complaint, filed 8/7/25, alleges a breach of contract, in that Defendant failed to repay a loan to Plaintiff, as of 2/29/24, in the amount of \$20,002.34. The agreement, purportedly signed by Defendant, and attached to the Complaint, appears to reflect a loan for the purchase of a vehicle. The agreement reflects payment terms, including

amount and frequency, as well as consequences for nonpayment. In addition, Plaintiff attached to the Complaint a letter to Plaintiff, reflecting the final balance of the car loan after the car was repossessed and sold.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, marks the section 3(b), suggesting all the allegations are true, and only disputes matters of venue and jurisdiction. She leaves blank 3(a), which indicates a general denial, and she also leaves blank section 4, which provides an opportunity to list affirmative defenses.

In attachment 3(b)(1) to the Answer, however, Defendant writes that the court does not have personal jurisdiction over the Defendant, and denies the allegations because she “lacks sufficient information to admit or deny [them].”

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, “[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint.” *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she “has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” *CCP 431.30(e)*.

In the instant matter, the Defendant has expressed her denial of the allegations in the attachment to her Answer. The court interprets this as a general denial, but even assuming *arguendo* that it does not suffice as such a denial, it appears as if it is a denial

based on lack of information or belief. Though there may be some ambiguity over the Defendant's intent because of the mere placement of this sentence in the form of the Answer, the court resolves any ambiguity in Defendant's favor.

Disposition

Plaintiff's Motion is denied.

The Court will file the Order.

**12. 9:00 AM CASE NUMBER: L25-12167
CASE NAME: NAVY FEDERAL CREDIT UNION VS. KHENDRIA WILLIAMS
HEARING ON SUMMARY MOTION MO FOR JUDGMENT ON THE PLEADINGS
FILED BY: NAVY FEDERAL CREDIT UNION**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The Motion and Declaration were timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits salient facts and fails to offer any valid defense.

The Complaint, alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff, as of 6/26/25, in the amount of \$4,345.36. The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, marks the box indicating that all statements in the Complaint are true. She writes, in Section 4, that she "admit[s] to settle for payment arrangement of amount owed." However, in Section 5, she also writes, "In denying the allegations of the complaint above, defendant denies not only the specific numbers and amounts alleged by the pleadings [sic]b but [illegible] number and amounts claimed."